NATIONAL COMPANY LAW TRIBUNAL
SPECIAL BENCH – COURT I
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF CHENNAI BENCH NATIONAL COMPANY LAW TRIBUNAL, HELD AT ON 22.12.2021 at 02.30 PM THROUGH VIDEO CONFERENCING

PRESENT: JUSTICE (RETD.) S. RAMATHILAGAM, MEMBER (JUDICIAL)
SHRI. SAMEER KAKAR, MEMBER (TECHNICAL)

IN THE MATTER OF : **Yanmar Engine Manufacturing India Pvt Ltd**

PETITION NUMBER : **CP(CAA)/50(CHE)/2021 IN CA.(CAA)/35/CHE/2021**

APPLICATION NUMBER

IA(CA)/25(CHE)/201

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10 CP(CAA)/50(CHE)/2021 IN CA.(CAA)/35/CHE/2021
IA(CA)/25(CHE)/2021

ORDER

Mr. Pawan Sharma, Advocate appears for the Applicant through video conferencing platform.

This Application is filed under Rule 11 of the NCLT Rules, 2016 seeking reliefs as follows:-

(a) Modify the order dated 10.11.2021 passed by this Hon'ble Tribunal by postponing the date of hearing of the Company Petition CP(CAA)/50(Che)/2021 from 08.12.2021 to an appropriate date so as to enable the Applicant / Transferee Company to serve the notice of hearing of the Petition on the statutory authorities at least 30 days in advance.

(b) For such further or other reliefs as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case".

IA(CA)/25(CHE)/2021 has been filed in CP(CAA)/50(CHE)/2021 before this Tribunal seeking sanction to the Scheme of Amalgamation between Yammar Engine Manufacturing India Private Limited (Applicant / Transferee Company) and Yanmar India Private Limited (Non-Applicant / Transferor Company) and their respective shareholders and creditors.

This Tribunal vide its order dated 10.11.2021 admitted the said Petition and fixed the date of hearing on 08.12.2021 and also issued directions to the Applicant Company to serve notice to the Statutory Authorities at least 30 days before the next date of hearing.

It was submitted by the Learned Counsel for the Applicant Company that the gap between the date of the order and the next date of hearing is less than 30 days and hence sought for a direction to give a fresh date so as to enable the Applicant Company to issue notice at least 30 days before the next date of hearing.

We have heard the submissions made by the Learned Counsel for the Applicant.

In view of the averments made in the Application is also based on the submissions made by the Learned Counsel for the Applicant, the order dated 10.11.2021 is modified to the following extent:-

"the next date of hearing of the CP(CAA)/50(CHE)/2021 shall be on 09.02.2022".

Save above, the other directions as issued in the order dated 10.11.2021 remain intact and with the above directions **IA(CA)/25(CHE)/2021** stands **closed.**

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
Justice (Retd.) S. RAMATHILAGAM
MEMBER (JUDICIAL)

Raymond / grk